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Director, Office of Information Policy (OIP)
U.S. Department of Justice
441 G Street, NW, 6th Floor
Washington, DC 20530

Re: FOIA Appeal – Request No. 2025-USMS-FOIA/PA-000412

Dear Director:

Pursuant to the Freedom of Information Act (5 U.S.C. § 552), I hereby appeal the determination of the United States Marshals Service (USMS) dated August 22, 2025, concerning my FOIA request for records and communications pertaining to myself, Matthew Oliver Reardon (also known as Don Matthews).

The USMS located 14 pages of responsive records and released them with significant redactions under Exemptions (b)(6), (b)(7)(C), (b)(7)(E), and (b)(7)(F). These withholdings are overbroad and improper for the following reasons:

1. Overbroad Privacy Redactions (b)(6) & (b)(7)(C)

The names of law enforcement and government officials acting in their official capacities were redacted. These individuals authored and circulated communications that labeled me as a “threat,” referenced a 2022 plea in Mississippi without context, and disseminated defamatory characterizations across multiple districts. When officials act in an official role, their names are not shielded by FOIA’s privacy exemptions, particularly where there is compelling public interest in accountability.

2. Misleading Use of 2022 Plea

The responsive documents repeatedly describe me as having “stalked the mayor,” although the underlying 2022 plea was the product of fabrication, denial of due process, and coercion during a

manufactured family crisis. Federal records treat that plea as proof of dangerousness, using it to justify nationwide BOLOs, surveillance, and alerts. This mischaracterization of a coerced plea, now amplified by federal law enforcement, magnifies the constitutional harm.

3. First Amendment Retaliation Concerns

The records confirm that USMS personnel circulated BOLOs labeling me as a “First Amendment auditor” and treated protected journalistic activity as grounds for surveillance. Courts have long recognized that retaliation against private citizens for protected expression violates the Constitution. In *Bennett v. Hendrix*, 423 F.3d 1247 (11th Cir. 2005), the Eleventh Circuit adopted the “ordinary firmness” test, holding that retaliatory conduct is actionable if it would deter a person of ordinary firmness from exercising First Amendment rights. There, as here, government officials engaged in a campaign of intimidation, including misuse of databases and public vilification. The parallels are direct, and the public interest in disclosure of these records is overwhelming .

4. Improper Withholding of Administrative Information (b)(7)(E)

The USMS has redacted routine internal references such as routing codes, URLs, and database identifiers under Exemption (b)(7)(E). These do not reveal sensitive investigative techniques. Their concealment only obscures how defamatory state-level narratives were federalized and circulated across districts.

5. Public Interest in Full Disclosure

This case is not about abstract privacy. It is about federal law enforcement amplifying and weaponizing state-level misconduct against a working journalist. The dissemination of distorted information across multiple federal districts (N/MS, W/LA, S/TX, D/UT, JSD) illustrates a systemic misuse of government resources to retaliate against protected expression. Identifying the officials who circulated these records is critical to exposing this misconduct and preventing further constitutional violations.

Requested Relief

I respectfully request that OIP:

1. Conduct a de novo review of the USMS response.

2. Order disclosure of the names and communications of officials who circulated false or retaliatory information.
3. Release less-redacted versions of the responsive records.
4. Direct a supplemental search across all referenced districts and divisions.

Conclusion

The FOIA exemptions were over-applied in this case to shield government misconduct and obscure retaliatory surveillance of a journalist. *Bennett v. Hendrix* makes clear that retaliation against private citizens for exercising First Amendment rights is unconstitutional, and public disclosure is necessary to understand how such retaliation has occurred here.

Thank you for your prompt review of this appeal.

Sincerely,

Matthew Oliver Reardon

Journalist, We The People News